

20STCV27223 20STCV27223

County: los-angeles

Division: Civil Law and Motion

Department: 407

Hearing date: 2026-09-17

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Case Number: 20STCV27223 Hearing Date: September 17, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: September

17, 2026 TRIAL

DATE: Jury verdict

CASE: Daevieon Towns v. Hyundai

Motor America

CASE NO.: 20STCV27223

PLAINTIFFS'

MOTION FOR ATTORNEYS' FEES, COSTS AND EXPENSES

DEFENDANT

HYUNDAI MOTOR AMERICA'S MOTION TO STRIKE, OR IN

THE

ALTERNATIVE, TAX COSTS

I. BACKGROUND

This is a lemon law action concerning a 2017 Elantra SE (the "Vehicle"). On July 21, 202, Plaintiffs, Daevieon Towns and Lashona Johnson, filed the First Amended Complaint against Defendant, Hyundai Motor America, asserting three violations of the Song-Beverly Act.

On

September 1, 2022, the jury rendered a verdict awarding Plaintiffs compensatory damages of \$9,374.92 and civil penalties in the amount of \$18,749.84.

On September 27, 2022, judgment was entered against

Plaintiffs in favor. In post-judgment Judge

Yolanda Orozco, then presiding, offset the damages award, awarded prejudgment interest, and granted Defendant's motion for judgment notwithstanding the verdict in part and entered amended judgment.

The parties filed cross-appeals.

On December

22, 2025, the Court of Appeal issued a published opinion in *Towns v. Hyundai Motor America* (2025) 117 Cal.App.5th 958 affirming in part and reversing in part the judgment. This court was directed to enter a modified judgment awarding plaintiff Daeveion Towns \$24,085.83 in damages, prejudgment interest on that amount, and \$18,749.84 as a civil penalty.

On April

29, 2026, the remittitur was issued.

Before the

court are two motions: (1) Plaintiff Daeveion Towns's Motion for Attorney Fees, and (2) Defendant's Motion to Tax Costs.

The court addresses these motions in turn.

II. MOTION FOR ATTORNEY FEES

A.

Background

On June 8, 2026, Plaintiff filed this motion for attorney fees.[1]

On September 3, 2026, Defendant filed an opposition.

On September 10, 2026, Plaintiffs filed a reply.

B.

Discussion

& Legal Standard

As the prevailing party, Plaintiffs are entitled to an award of reasonable attorney fees. (Civ. Code, § 1794, subd. (d).) California courts apply the “lodestar” approach to determine what fees are reasonable. (See, e.g., *Holguin v. DISH Network LLC* (2014) 229 Cal.App.4th 1310, 1332.) This inquiry “begins with the ‘lodestar,’ i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate.” (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095.) From there, the “lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided.” (*Ibid.*) Relevant factors include “(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award.” (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.) The party seeking fees has the burden of documenting the appropriate hours expended and hourly rates. (*City of Colton v. Singletary* (2012) 206 Cal.App.4th 751, 784.)

Plaintiffs seek a total fee award of \$962,152.50, which consists of a lodestar multiplier of 1.5 in the amount of \$320,717.50, hours billed by Knight Law Group (“KLG”) in the amount of \$275,837.50, and hours billed by Greines, Martin, Stein & Richland LLP (“GMSR”) in the amount of \$365,597.50.

1. Reasonable Hourly Rate

KLG charged \$250-\$600 for trial court proceedings and GMSR charged \$650-\$925 in connection to the appeal. (*Kirnos Decl.*, Ex. A; *Tobisman Decl.* Ex. A.) Defendant argues the rates are not reasonable and requests that the court reduce KLG’s rates to \$350 and GMSR’s rates to \$700.

Based upon general prevailing rates in the Los Angeles area for this type of litigation, the Court finds the reasonable rate for attorney billing is as follows: for Lodestar purposes, the court will award a “blended” hourly rate of \$500.00 per hour for KLG and \$850.00 per hour for GMSR. (See, e.g., *Mikhaeilpoor v. BMW of North America* (2020) 48 Cal.App.5th 240 [trial court has discretion to award a “blended

hourly rate” for attorney’s fees motion].) This determination considers the complexity of the case, the quality of services provided, and the attorneys’ experience.

2. Number of Hours Reasonably Expended

Plaintiff provides a copy of counsel’s billing records, which show 634.9 hours billed by KLG (Kimos Decl., Ex. A) and 440.80 hours billed by GMSR (Tobisman Decl., Ex A).

Defendant argues the amount billed is not reasonable and challenges specific billing entries. (See Takahashi Decl., Ex. M.)

After reviewing the filings in connection to this matter, the court finds the hours reasonably incurred by KLG and GMSR is 350 hours and 250 hours, respectively. Applying the blended rates discussed above, the court finds the attorney fees reasonably incurred in this action is \$387,500.00. The court, in its discretion, declines to award a multiplier.

C.

Conclusion

The motion for attorney fees is GRANTED IN PART. The court awards Plaintiff \$387,500.00 in attorney fees.

III. MOTION TO TAX COSTS

A. Background

On June 8, 2026, Plaintiff filed a Memorandum of Costs for \$61,521.19.

On June 25, 2026, Defendant filed a motion to strike or tax the cost memorandum.

On September 3, 2026, Plaintiff filed an opposition.

On September 10, 2026, Defendant filed a reply.

B. Legal Standard

A party challenging the amounts

claimed may file a motion to tax costs, which must be served and filed 15 days after service of the cost memorandum. If the cost memorandum was served by mail, the period is extended as provided in Code of Civil Procedure section 1013. If the cost memorandum was served electronically, the period is extended as provided in Code of Civil Procedure section 1010.6, subdivision (a)(4). (Cal. Rules of Court., rule 3.1700(b)(1).) “Unless objection is made to the entire cost memorandum, the motion ... must refer to each item objected to by the same number and appear in the same order as the corresponding cost item claimed on the memorandum of costs and must state why the item is objectionable.” (Cal. Rules of Court, rule 3.1700(b)(2).)

The memorandum of cost is a

verified statement by the party, attorney, or agent that the costs are correct and were necessarily incurred in the case. (Cal. Rules of Court, rule 3.1700(a)(1).) “If the items appear to be proper charges, the verified memorandum is prima facie evidence that the costs, expenses and services therein listed were necessarily incurred by the defendant, and the burden of showing that an item is not properly chargeable or is unreasonable is upon the [objecting party].” (Oak Grove School Dist. v. City Title Ins. Co. (1963) 217 Cal.App.2d 678, 698.) “[I]f the correctness of the memorandum is challenged either in whole or in part by the affidavit or other evidence of the contesting party, the burden is then on the party claiming the costs and disbursements to show that the items charged were for matters necessarily relevant and material to the issues involved in the action.” (Id. at p. 699.)

Code of Civil Procedure section

1033.5 lists the costs that are recoverable. Section 1033.5 provides: “(1) Costs are allowable if incurred, whether or not paid. (2) Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation. (3) Allowable costs shall be reasonable in amount. (4) Items not mentioned in this section ... may be allowed ... in the court’s discretion.” (Code Civ. Proc., §1033.5, subd.

(c.)

C. Application

Defendant argues \$2,980.71 in claimed costs were not reasonably incurred. Specifically, Defendant takes aim at costs Plaintiff incurred for filing fee and subpoena costs associated with PMK depositions of non-party South Bay Hyundai (the dealership), meal costs, and undocumented other costs at Item 13 of the costs memorandum.

The court will tax the filing fee and subpoena costs. As explained in the moving papers, Plaintiff served notices of taking depositions of numerous employees of South Bay Hyundai in violation of the court's Addendum to Case Management Conference Order (Song-Beverly Litigation). Defendant appropriately objected to the depositions, Plaintiff filed a motion to compel, and the court denied the motion. (See Takahashi Decl., ¶ 6, Ex. B; Minute Order 01/26/23.) The costs of \$1,214.25 in connection to the deposition subpoenas to South Bay Hyundai were not reasonably necessary. In an apparent concession, Defendant states it withdraws \$1,575 from the Attorney Services and Messenger Court Filings and Service section of the worksheet. (See Opp., p. 9:15-16.)

As to the other costs, Defendant seeks to tax \$1,353.30 in relation to the unnecessary participation of an attorney, Kevin Chaffin, in this matter, and \$413.16 in undocumented travel costs. The \$1,353.30 figure is taken directly from Judge Orozco's order granting in part Defendant's motion to tax costs in Plaintiff's prior memorandum of costs. (Minute Order, 01/26/23.) Defendant fails to sufficiently explain why that same figure should be stricken from the costs memorandum before the court. The court is similarly puzzled by the reference to \$413.16 in travel costs. The only figure that is not properly described is \$301.07 in other costs. The court will tax the costs bill in the unidentified sum of \$301.07 as it is not, on its face reasonably related to the prosecution of this litigation.

D. Conclusion

Accordingly, the motion to tax is GRANTED IN PART. The court taxes Plaintiff's costs memorandum in the sum of \$1,876.07 (\$1,575 and \$301.07) for a total award of \$59,645.12.

IV. DISPOSITIONS

1. Plaintiff's motion for attorney fees is Granted In Part. Plaintiff is awarded \$387,500.00 in attorney fees.

2. Defendant's motion to strike or tax costs is Granted In part. Plaintiff is awarded \$59,645.12 in costs.

Plaintiff to give notice, unless waived.

Dated: September 17,
2026

Brock T. Hammond

Judge of the Superior Court

[1] Plaintiff also seeks an award of costs. The court discusses costs in connection to Defendant's motion to strike or tax costs.